

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-35

M.E. DEY & CO., INC.,

Complainant,

v.

HAPAG-LLOYD AG and HAPAG-LLOYD (AMERICA) LLC,

Respondents and Third-Party Complainants,

v.

CSX TRANSPORTATION, INC.,

Third-Party Respondent.

**THIRD-PARTY RESPONDENT’S REQUEST FOR
STATUS CONFERENCE ON COMPLAINANT AND THIRD-PARTY
COMPLAINANTS’ JOINT MOTION FOR APPROVAL OF CONFIDENTIAL
SETTLEMENT AGREEMENT**

Third-Party Respondent, CSX Transportation, Inc. (“CSXT”) respectfully requests a status conference with the Presiding Officer at his earliest opportunity to discuss procedural questions pertaining to the Joint Motion for Approval of Confidential Settlement Agreement (“Proposed Settlement Motion”) filed by Complainant M.E. Dey & Co., Inc. (“Dey”) and Respondents and Third-Party Complainants Hapag-Lloyd (America) LLC and Hapag-Lloyd AG (“Hapag”) (collectively the “Original Parties”) on June 17, 2024.¹

¹ Dkt. No. 47.

On May 11, 2023, CSXT was served Hapag’s Third-Party Complaint alleging that CSXT had violated Sections 41102(c) and 41104(a)(14) of the Shipping Act.² On June 5, 2023, counsel for CSXT entered a limited appearance for the purpose of contesting jurisdiction over the claims against CSXT in the Third-Party Complaint and filed a motion to dismiss the Third-Party Complaint.³ On May 17, 2024, the Presiding Officer issued an order granting CSXT’s motion to dismiss and resetting the briefing schedule (“May 17 Order”).⁴ On June 14, 2024, the Commission issued a “Notice of Commission Determination to Review” (“Review Notice”) the Presiding Officer’s May 17 Order.⁵ On June 17, 2024, the Original Parties filed the Proposed Settlement Motion, seeking approval of the confidential settlement agreement and dismissal of Dey’s complaint against Hapag with prejudice.⁶

As a result of the Commission’s June 14, 2024 Review Notice, the May 17 Order is presently before the Commission for review pursuant to 46 C.F.R. § 502.227(d), and it is CSXT’s understanding that the May 17 Order is rendered inoperative pending the Commission’s determination of the matter, pursuant to 46 C.F.R. § 502.227(a)(5). CSXT was not served with the Proposed Settlement Motion, which counsel for Hapag indicated was inadvertent. Pursuant to the Review Notice and applicable FMC Rules, we believe that procedurally CSXT remains a party in this proceeding, pending action on the Commission’s review. Accordingly, as a party in this proceeding, CSXT should have been served the Proposed Settlement Motion by the Original Parties. CSXT has substantive legal interests in the Proposed Settlement Motion and its outcome, and CSXT should be served and afforded an opportunity to respond.

² Dkt. No. 28.

³ Dkt Nos. 30-34.

⁴ Dkt. No. 44.

⁵ Dkt. No. 46.

⁶ Dkt. No. 47.

CSXT respectfully requests a status conference to discuss the Proposed Settlement Motion and related procedural matters in connection with service and the Commission's Review Notice. Counsel for CSXT has conferred with counsel for Dey and Hapag, and both have indicated that they do not object to CSXT's request for a status conference.

Dated: June 28, 2024

Respectfully submitted,

HOLLAND & KNIGHT LLP

By: /s/ Gerald A. Morrissey III

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 28th day of June 2024, the foregoing Third-Party Respondent's Motion to Dismiss was served via electronic mail on:

Complainant:

Brendan Collins, Rachel Amster
bcollins@gkglaw.com, ramster@gkglaw.com

Respondent and Third-Party Complainant:

Wayne Rohde and Rachel Schwartz
wrohde@cozen.com, rschwartz@cozen.com

Intervenor, Bureau of Enforcement, Investigations, and Compliance:

Jonathan Todd, Theron Korsak
jtodd@fmc.gov, tkorsak@fmc.gov

By: /s/ Kristine O. Little
Kristine O. Little